

25AVCV00263 25AVCV00263

County: los-angeles

Division: Civil Law and Motion

Department: A14

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Case Number: 25AVCV00263 Hearing Date: July 7, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

WAYNE BEUHRING, II,

Plaintiff,

v.

DENNIS DALE PURSLEY, and DOES 1 through 25, inclusive,

Defendants.

Case Number 25AVCV00263

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: July 7, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a personal injury and property case arising from a motor vehicle accident.

On February 28, 2025, Plaintiff Wayne Beuhring, II (Plaintiff) filed his form complaint against Defendant Dennis Dale Pursley (Defendant) and DOES 1 through 25, asserting causes of action for personal injury and property damage arising from a motor vehicle accident and general negligence. Specifically, Plaintiff alleges that Defendant was the operator and owner of a 2022 Chevrolet Silverado 2500, and that on or about March 3, 2023, Defendant's vehicle failed to stop at a red light and collided with the rear of Plaintiff's vehicle, causing Plaintiff to sustain serious injuries. (Compl., Cause of Action – General Negligence Attachment.) The Cause of Action – Motor Vehicle Attachment to the Complaint lists the date of the acts as March 8, 2023.

On April 7, 2025, Defendant filed his answer.

On June 20, 2025, Plaintiff filed an addendum to the complaint, stating the correct date of the automobile collision giving rise to the action is March 3, 2023. This filing was denied as an answer had been filed and the addendum was procedurally improper.

On October 23, 2025, Plaintiff moved for leave to file a first amended complaint to name additional defendants in the case. On January 13, 2026, the Court denied Plaintiff's motion for improperly attempting to reverse pierce the corporate veil.

On March 20, 2026, Plaintiff filed his motion for leave to file a first amended complaint.

On June 29, 2026, Plaintiff filed a supplemental declaration in support of his motion for leave.

No opposition has been filed.

II. Preliminary Procedural Issues

Timeliness of Plaintiff's Supplemental Declaration – Generally, all declarations in support of any petition, motion, or application must be served and submitted at least nine court days before any hearing on the matter at issue. (Cal. Rules of Court, rule 3.513.)

Here, Plaintiff filed his supplemental declaration on June 29, 2026, only 5 court days before the hearing on the request. Thus, Plaintiff's supplemental declaration is not timely.

However, in the absence of any facts indicating prejudice to Defendant, the Court will consider the supplemental declaration.

III. Legal Standard

Standard for Leave to Amend a Complaint – Code of Civil Procedure section 473, subdivision (a)(1) provides, in relevant part: "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code."

(Code Civ. Proc., § 473, subd. (a)(1).) This discretion should be exercised liberally in favor of amendments, for “judicial policy favors resolution of all disputed matters in the same lawsuit.” (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1047.)

“The trial court has discretion to permit or deny the amendment of the complaint, but instances justifying the court’s denial of leave to amend are rare.” (Armenta ex rel. City of Burbank v. Mueller Co. (2006) 142 Cal.App.4th 636, 642.) However, “[a]lthough courts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [Citations], this policy should be applied only ‘[w]here no prejudice is shown to the adverse party . . .’ [Citation.] A different result is indicated ‘[w]here inexcusable delay and probable prejudice to the opposing party’ is shown. [Citation.]” (Magpali v. Farmers Group, Inc. (1996) 48 Cal.App.4th 471, 487.)

Under rule 3.1324, subdivision (a) of the California Rules of Court, a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324(a).)

Under subdivision (b), a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Id., subd. (b).)

IV. Discussion

Application – Plaintiff requests leave to amend to correct an inconsistency in the operative complaint, which presently identifies the date of the underlying motor vehicle accident as both March 3, 2023 and March 8, 2023. (Compl., Cause of Action – General Negligence Attachment; Cause of Action – Motor Vehicle Attachment; Beuhring Decl., ¶ 5.) Plaintiff states that the date of the accident is March 3, 2023, as identified in portions of the complaint and as identified in Defendant’s responses to Form Interrogatories, which were mailed in November of 2025. (Beuhring Decl., ¶ 6.)

a. Procedural Compliance With Rule 3.1324(a)

Plaintiff has complied with California Rules of Court rule 3.1324, subdivision (a). Plaintiff filed, concurrently with his request for leave to amend, an ‘Exhibit Index,’ attached to which is a proposed amended complaint which is serially numbered as amended number one. (Index, Ex. 1.) Plaintiff has also sufficiently stated the allegations to be deleted, being the date of March 8, 2026 on the original Cause of Action – Motor Vehicle Attachment to the complaint. (Beuhring Decl., ¶ 5.) Plaintiff sufficiently states the allegations to be added to the amended complaint, being that the date of the accident is March 3, 2023.

Plaintiff’s request is also in compliance with California Rules of Court rule 3.1324, subdivision (b). On June 29, 2026, five court days before the hearing on his request, Plaintiff filed his supplemental declaration to clarify the facts as required by rule 3.1324(b). Plaintiff states with sufficient clarity the effect of the amendment, why the amendment is necessary and proper, the date and manner in which Plaintiff discovered the facts giving rise to the amended allegations, and the reason why Plaintiff did not file his request earlier.

Accordingly, Plaintiff’s request is procedurally proper.

b. Leave to Amend

The Court finds there is good cause to grant Plaintiff leave to file a first amended complaint. The amendment is limited in scope and accurately reflects the date of the accident as asserted by both Plaintiff and Defendant. Plaintiff seeks a narrow amendment to clarify a date, which has a five-day discrepancy, and does not seek to add any new cause of action, defendants, claims, allegations, injuries, theory of liability, or damages. Plaintiff states he became aware of the risk of uncertainty and confusion arising from the discrepancy following his receipt of insurance policy documentation from Defense counsel on or about February 4, 2026, after which he requested clarification from Defense counsel without response. (Suppl. Dec., ¶¶ 8-9, 16.) The Court also notes that Plaintiff promptly filed a request for amendment on March 20, 2026, which although denied on procedural grounds, indicates a prompt attempt to resolve the matter.

Additionally, Defendant has previously indicated in his filings that the appropriate date of the motor vehicle accident is March 3, 2023. (See Defendant's Opposition to Motion to Compel Disclosure, dated February 5, 2026, p. 1:23-26.) Plaintiff also states that Defendant identified the date of the accident as March 3, 2023, in his discovery responses. (Suppl. Decl., ¶ 7.)

The Court notes that on the original form complaint, "General Negligence" was not marked as a cause of action, whereas the box is marked on the proposed first amended complaint. (Compl., p. 3, ¶ 10; PFAC, p. 3, ¶ 10.) However, the Court also notes that the original complaint included a Cause of Action – General Negligence attachment to the complaint, indicating Plaintiff's assertion of general negligence as a cause of action.

Based on the foregoing facts and that March 3, 2023, was identified as the proper date of the accident in the underlying operative complaint, the Court finds that this limited amendment will not prejudice or cause surprise to Defendant.

Accordingly, Plaintiff's request for leave to amend is GRANTED.

V. Conclusion

Plaintiff Wayne Beuhring, II's Motion for Leave to File First Amended is GRANTED. Plaintiff to file the proposed first amended complaint within ten days of this Order.